

1 AN ACT relating to motor vehicles.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 190.058 is amended to read as follows:

- 4 (1) The Motor Vehicle Commission is hereby created as an agency of the
5 Commonwealth to carry out the functions and duties conferred upon it by this
6 section.
- 7 (2) The commission shall consist of twelve (12) members, eleven (11) of whom shall
8 be appointed by the Governor, and the twelfth shall be the commissioner of the
9 Department of Vehicle Regulation. The appointed members shall be:
- 10 (a) One (1) representative of an automobile manufacturer;
11 (b) One (1) representative of automobile wholesalers;
12 (c) One (1) representative of consumers who shall have no direct financial
13 interest in the industry;
14 (d) Four (4) new motor vehicle dealers, but no more than two (2) shall represent
15 the same automobile manufacturer as a franchise dealer; and
16 (e) Four (4) used motor vehicle dealers.
- 17 (3) In addition to the requirements of membership on the commission in subsection (2)
18 **of this section**, the following requirements shall apply to the composition of the
19 commission:
- 20 (a) No more than seven (7) members shall be from the same political party; and
21 (b) From the eight (8) members specified in subsection (2)(d) and (e) **of this**
22 **section**, seven (7) shall be from separate Supreme Court districts.
- 23 (4) Each member shall serve for a term of three (3) years. The staggered terms of
24 membership dating from the gubernatorial appointments of July 15, 1982, shall
25 remain in effect.
- 26 (5) (a) Members of the commission shall qualify by taking the constitutional oath of
27 office which shall, with the certificate of appointment, be evidence of the

1 authority of the member to act.

2 (b) Each member of the commission shall be entitled to two hundred dollars
3 (\$200) per day for each day actually engaged in the duties of the office,
4 including time spent in necessary travel to and from meetings and otherwise,
5 together with all travel and other necessary expenses incurred while
6 performing official duties.

7 (6) The commission shall hold a regular annual meeting in September of each year and
8 elect a chairperson~~[chairman]~~ and vice chairperson~~[chairman]~~ to serve for the
9 ensuing year. The commission shall have regular meetings as the majority of the
10 members specifies and special meetings at the request of any five (5) members.
11 Reasonable notice of all meetings shall be given as commission administrative
12 regulations prescribe.

13 (7) A member of the commission shall not participate in the deliberations of the
14 commission and shall not vote on any matter before the commission in which the
15 member has a financial interest or is an interested party. A member shall voluntarily
16 disqualify himself or herself from deliberating or voting upon matters that affect the
17 member but shall not be required to disqualify from matters of general interest
18 affecting the member, the member's employer, or a business unit in which the
19 member has a financial interest as a member of a class of persons to be affected by
20 an administrative regulation or order of the commission.

21 (8) A majority of the commissioners, excluding any disqualified commissioner, shall
22 constitute a quorum for the transaction of any business, for the performance of any
23 duty, or for the exercise of any power of the commission. A vacancy in the
24 commission, whether due to disqualification or otherwise, shall not impair the right
25 of the remaining commissioners to exercise all the powers of the commission.

26 (9) The commission shall employ an executive director who shall be the chief
27 administrative officer of the commission. The executive director~~[He]~~ shall maintain

1 all minutes of the commission proceedings and shall be custodian of the files and
2 records of the commission. The executive director shall employ the staff authorized
3 by the commission. The commission may, by interagency contract, utilize
4 assistance of any state agency.

5 (10) (a) There is hereby created in the state treasury a trust and agency account to
6 be known as the motor vehicle commission fund. The fund shall consist of
7 all license fees paid to the commission under this chapter, state
8 appropriations, gifts, grants, and federal funds.

9 (b) The fund shall be administered by the commission.

10 (c) Amounts deposited in the fund shall be used for carrying out the duties of
11 the commission under this chapter.

12 (d) Notwithstanding KRS 45.229, fund amounts not expended at the close of a
13 fiscal year shall not lapse but shall be carried forward into the next fiscal
14 year.

~~The commission shall deposit all moneys received by it from license fees
paid under this law with the State Treasurer, who shall keep them in a
separate fund to be known as the "Motor Vehicle Commission Fund." The
commission may use this fund for salaries, wages, per diem, professional and
consulting fees, grants, loans, contracts, travel expenses, equipment, office
rent and expenses, and other necessary expenses incurred in carrying out its
duties under this section as provided by legislative appropriation.
Notwithstanding KRS 45.229, at the close of each biennium, the unexpended
balance remaining in the motor vehicle commission fund shall not lapse but
shall be carried forward to the next biennium].~~

24 (11) The commission shall administer the provisions of this section, establish the
25 qualifications of manufacturers and dealers, and ensure that the distribution and sale
26 of new motor vehicles are conducted as provided in this chapter and under the
27 commission's administrative regulations.

- 1 (12) The commission may issue orders and make determinations necessary to carry out
2 the provisions of KRS 190.010 to 190.080. The orders shall set forth the findings on
3 which the order is based, and the reason for the particular action taken. All orders
4 shall be signed by the chairperson~~[chairman]~~ or vice chairperson~~[chairman]~~ and
5 attested by the executive director.
- 6 (13) The commission may hold hearings that shall be conducted in accordance with KRS
7 Chapter 13B. A member of the commission shall not participate in the deliberations
8 of the commission and shall not vote on any matter if the member has been
9 disqualified on any of the grounds under KRS 13B.040.
- 10 (14) The commission may cause legal proceedings to be instituted to enforce the
11 provisions of this section and its administrative regulations, orders, and decisions. If
12 it appears from any investigation of a possible violation of any other law or
13 administrative regulation that a violation of the provisions of KRS 190.010 to
14 190.080 may have occurred, the matter shall be referred to the commission to
15 determine whether proceedings under KRS 190.010 to 190.080 are appropriate. The
16 commission may make contracts and execute instruments necessary or convenient
17 to the exercise of its power or performance of its duties.
- 18 (15) The availability of administrative procedures under this section shall not preclude
19 the utilization of other remedies for violation of the provisions of this chapter which
20 are available to the affected parties, including actions for injunctive relief.
- 21 ➔Section 2. KRS 189.222 is amended to read as follows:
- 22 (1) Except as provided in subsection (2) of this section, the secretary of the
23 Transportation Cabinet in respect to highways which are a part of the state-
24 maintained system, by official order, may increase on designated highways or
25 portions thereof, the maximum height, length, and gross weight prescribed in KRS
26 189.221, if in the opinion of the secretary, the increased height, length, and weight
27 designated by him or her are justified by the strength, safety, and durability of the

1 designated highways, and the highways do not appear susceptible to unreasonable
2 and unusual damage by reason of the increases and the secretary may establish
3 reasonable classification of state maintained roads and fix a different maximum for
4 each classification. Any increase in the height, length, or width of any motor truck
5 or tractor semitrailer combinations or any other vehicle combinations including any
6 part of the body or load or designation of highways to be used by the vehicles, shall
7 not, in any way, exceed the federal law or regulations thereunder or jeopardize the
8 allotment or qualification for federal aid funds of the Commonwealth of Kentucky
9 or exceed the following dimensions and weights:

- 10 (a) 1. Height, for vehicles transporting motor vehicles, fourteen (14) feet; and
11 2. Height, for all other vehicles, thirteen and one-half (13-1/2) feet;
- 12 (b) Length, semitrailers, fifty-three (53) feet; trailers, twenty-eight (28) feet;
13 motor trucks, forty-five (45) feet, not to exceed two (2) trailers per truck
14 tractor;
- 15 (c) Weight, twenty thousand (20,000) pounds per single axle, with axles less than
16 forty-two (42) inches apart to be considered as a single axle; thirty-four
17 thousand (34,000) pounds on two (2) axles in tandem arrangement which are
18 spaced forty-two (42) inches or more apart and less than ninety-six (96)
19 inches apart; forty-eight thousand (48,000) pounds on three (3) axles which
20 are spaced forty-two (42) inches or more apart and less than one hundred
21 twenty (120) inches apart. No single axle in any arrangement shall exceed
22 twenty thousand (20,000) pounds or seven hundred (700) pounds per inch of
23 the aggregate width of all the tires on a single axle, whichever is less. The
24 total gross weight of the vehicle and load shall not exceed eighty thousand
25 (80,000) pounds;
- 26 (d) Except on the interstate highway system, a tolerance of not more than five
27 percent (5%) per axle load shall be permitted before a carrier is deemed to

1 have violated paragraph (c) of this subsection. The gross weight shall not
2 exceed eighty thousand (80,000) pounds;

3 (e) Except as provided for in paragraph (f) of this subsection, truck tractor,
4 semitrailer and trailer combinations, and other vehicle combinations may be
5 operated only on the interstate system and on those parts of the federal aid
6 highway system and the state-maintained system which have been designated
7 by the secretary of the Transportation Cabinet by official order as safely
8 allowing same; and

9 (f) A vehicle or combination of vehicles that is one hundred two (102) inches
10 wide or less and has a gross weight of not more than eighty thousand (80,000)
11 pounds may be driven on any state highway, for a distance of up to fifteen
12 (15) miles from an interstate or parkway exit.

13 (2) In addition to the provisions of KRS 189.2226, vehicles with a gross weight of up
14 to eighty thousand (80,000) pounds may travel on any state highway in the
15 Commonwealth without obtaining a special permit, if the weight does not exceed
16 any limits mandated by federal law or regulation, any posted bridge weight limit, or
17 the weight limits for the size and type of vehicle established under subsection (1)(c)
18 of this section, and if the vehicle is transporting any of the following:

- 19 (a) Meats or agricultural crop products originating from a farm to first market;
20 (b) Livestock or poultry from their point of origin to first market. As used in this
21 paragraph and in paragraph (d) of this subsection, "livestock" means cattle,
22 sheep, swine, goats, horses, alpacas, llamas, buffaloes, or any other animals of
23 the bovine, ovine, porcine, caprine, equine, or camelid species;
24 (c) Primary forest products, including, but not limited to, sawdust, wood chips,
25 bark, slabs, or logs originating from their points of origin to first market; or
26 (d) Supplies, materials, or equipment necessary to carry out a farming operation
27 engaged in the production of agricultural crop products, meats, livestock, or

1 poultry.

2 (3) The following vehicles registered under KRS 186.050 may exceed the gross weight
3 provisions set forth in subsection (1)(c) of this section by a weight tolerance of ten
4 percent (10%), except on the interstate highway system:

5 (a) Vehicles that are engaged exclusively in the transportation of items listed in
6 subsection (2)(a), (b), and (c) of this section; and

7 (b) Vehicles that are engaged exclusively in the transportation of feed for
8 livestock or poultry.

9 (4) (a) Notwithstanding KRS 189.269, vehicles with a gross weight of up to ninety
10 thousand (90,000) pounds transporting fluid milk originating from a farm
11 to first market may travel on any state highway in the Commonwealth
12 without obtaining a special permit, except that:

13 1. The weight of the vehicle and load under this subsection shall not
14 exceed any limits mandated by federal law or regulation, or any posted
15 bridge weight limit; and

16 2. A vehicle being operated on the interstate highway system shall not
17 exceed eighty thousand (80,000) pounds.

18 (b) A vehicle may exceed the weight provisions established by this subsection by
19 a weight tolerance of ten percent (10%), except on the interstate highway
20 system.

21 (5) Vehicles exclusively engaged in the transportation of motor vehicles,
22 unmanufactured tobacco, or unmanufactured tobacco products may, on those
23 highways which are a part of the state-maintained system and which have been
24 designated by the secretary of the Transportation Cabinet by official order as safely
25 allowing same, attain the maximum lengths as provided by subsection (1)(b) of this
26 section, excluding the usual and ordinary bumper overhang of the transported
27 vehicles.

1 ~~(6)~~~~(5)~~ Vehicles engaged exclusively in the transportation of farm or primary forestry
2 products and registered under KRS 186.050(4) or 186.050(9) and vehicles engaged
3 exclusively in the transportation of ready-mixed concrete shall be excluded from
4 the axle weight provisions, except on interstate highways, and subject only to total
5 gross weight provisions.

6 ~~(7)~~~~(6)~~ Vehicles registered pursuant to KRS 186.050(3)(b) and engaged in the
7 transportation of primary forest products, including, but not limited to, vehicles
8 transporting sawdust, wood chips, bark, slabs, or logs, may exceed the axle, or
9 gross weight provisions as set forth in accordance with subsection (1)(c) of this
10 section by a weight tolerance of ten percent (10%), except on the interstate highway
11 system.

12 ~~(8)~~~~(7)~~ Vehicles designed for and engaged exclusively in the collection and hauling
13 of refuse and registered under KRS 186.050(3)(b) shall be excluded from the axle
14 weight provisions, except when in operation on the federal interstate system, and
15 subject only to total gross weight provisions.

16 ~~(9)~~~~(8)~~ The secretary of the Transportation Cabinet may by order increase the weight
17 and height limits prescribed by this chapter for motor vehicles while being operated
18 exclusively on roads or highways being constructed, reconstructed, or repaired
19 under contract with the Transportation Cabinet by the contractor or subcontractor,
20 agent, or employee thereof.

21 ~~(10)~~~~(9)~~ Except as otherwise provided in this chapter, the secretary of the
22 Transportation Cabinet shall not authorize the operation of any vehicle or
23 combination of vehicles, upon any part of the federal aid highway system or state
24 parkway system, which exceeds the following dimensions and weights:

25 (a) Width, one hundred two (102) inches, including any part of the body or load;
26 or

27 (b) Weight, twenty thousand (20,000) pounds per single axle, with axles less than

1 forty-two (42) inches apart to be considered as a single axle; thirty-four
2 thousand (34,000) pounds on two (2) axles in tandem arrangement which are
3 spaced forty-two (42) inches or more apart and less than ninety-six (96)
4 inches apart; forty-eight thousand (48,000) pounds on three (3) axles which
5 are spaced forty-two (42) inches or more apart and less than one hundred
6 twenty (120) inches apart. The total gross weight of the vehicle and load shall
7 not exceed eighty thousand (80,000) pounds. If any federal law or laws or
8 regulations thereunder are hereafter enacted authorizing weights and
9 dimensions in excess of those set out in paragraphs (a) and (b) of this
10 subsection, the secretary of the Transportation Cabinet may by official order
11 increase the maximum weights and dimensions but the increased weights and
12 dimensions shall not exceed those set out in this section.

13 ~~(11)~~~~(10)~~ Except on the interstate highway system, vehicles engaged exclusively in the
14 transportation of crushed stone, fill dirt and rock, soil, bulk sand, coal, phosphate
15 muck, asphalt, concrete, solid waste, tankage or animal residues, livestock, feed for
16 livestock or poultry, and agricultural products shall be permitted a tolerance of ten
17 percent (10%) of the axle weight provisions before a carrier is deemed to have
18 violated subsection (1)(c) of this section.

19 ~~(12)~~~~(11)~~ For any vehicle which is equipped with an auxiliary power unit, the weight
20 limits set forth in this section shall be increased by four hundred (400) pounds.

21 ~~(13)~~~~(12)~~ The Transportation Cabinet may promulgate administrative regulations in
22 accordance with~~[pursuant to]~~ KRS Chapter 13A, relating to the implementation of
23 23 C.F.R. pt. 658 as it relates to state-maintained or locally maintained roads. The
24 enforcement of the provisions of KRS 189.221 and this section on locally
25 maintained roads shall not be the responsibility of the law enforcement officers of
26 the Transportation Cabinet, unless the head of the corresponding local government
27 unit has requested, in writing, enforcement assistance from the Transportation

1 Cabinet.

2 ➔Section 3. KRS 189.010 is amended to read as follows:

3 As used in this chapter:

4 (1) "Department" means the Department of Highways;

5 (2) "Crosswalk" means:

6 (a) That part of a roadway at an intersection within the connections of the lateral
7 lines of the sidewalks on opposite sides of the highway measured from the
8 curbs or in the absence of curbs, from the edges of the traversable roadway; or

9 (b) Any portion of a roadway at an intersection or elsewhere distinctly indicated
10 for pedestrian crossing by lines or other markings on the surface;

11 (3) "Highway" means any public road, street, avenue, alley or boulevard, bridge,
12 viaduct, or trestle and the approaches to them and includes private residential roads
13 and parking lots covered by an agreement under KRS 61.362, off-street parking
14 facilities offered for public use, whether publicly or privately owned, except for-
15 hire parking facilities listed in KRS 189.700;

16 (4) "Intersection" means:

17 (a) The area embraced within the prolongation or connection of the lateral curb
18 lines, or, if none, then the lateral boundary lines of the roadways of two (2)
19 highways which join one another, but do not necessarily continue, at
20 approximately right angles, or the area within which vehicles traveling upon
21 different highways joining at any other angle may come into conflict; or

22 (b) Where a highway includes two (2) roadways thirty (30) feet or more apart,
23 then every crossing of each roadway of such divided highway by an
24 intersecting highway shall be regarded as a separate intersection. If the
25 intersecting highway also includes two (2) roadways thirty (30) feet or more
26 apart, every crossing of two (2) roadways of the highways shall be regarded as
27 a separate intersection. The junction of a private alley with a public street or

- 1 highway shall not constitute an intersection;
- 2 (5) "Manufactured home" has the same meaning as defined in KRS 186.650;
- 3 (6) "Motor truck" means any motor-propelled vehicle designed for carrying freight or
4 merchandise. It shall not include self-propelled vehicles designed primarily for
5 passenger transportation but equipped with frames, racks, or bodies having a load
6 capacity of not exceeding one thousand (1,000) pounds;
- 7 (7) "Operator" means the person in actual physical control of a vehicle;
- 8 (8) "Pedestrian" means any person afoot or in a wheelchair;
- 9 (9) "Right-of-way" means the right of one (1) vehicle or pedestrian to proceed in a
10 lawful manner in preference to another vehicle or pedestrian approaching under
11 such circumstances of direction, speed, and proximity as to give rise to danger of
12 collision unless one grants precedence to the other;
- 13 (10) "Roadway" means that portion of a highway improved, designed, or ordinarily used
14 for vehicular travel, exclusive of the berm or shoulder. If a highway includes two
15 (2) or more separate roadways, the term "roadway" as used herein shall refer to any
16 roadway separately but not to all such roadways collectively;
- 17 (11) "Safety zone" means the area or space officially set apart within a roadway for the
18 exclusive use of pedestrians and which is protected or is so marked or indicated by
19 adequate signs as to be plainly visible at all times while set apart as a safety zone;
- 20 (12) "Semitrailer" means a vehicle designed to be attached to, and having its front end
21 supported by, a motor truck or truck tractor, intended for the carrying of freight or
22 merchandise and having a load capacity of over one thousand (1,000) pounds;
- 23 (13) "Truck tractor" means any motor-propelled vehicle designed to draw and to support
24 the front end of a semitrailer. The semitrailer and the truck tractor shall be
25 considered to be one (1) unit;
- 26 (14) "Sharp curve" means a curve of not less than thirty (30) degrees;
- 27 (15) "State Police" includes any agency for the enforcement of the highway laws

1 established pursuant to law;

2 (16) "Steep grade" means a grade exceeding seven percent (7%);

3 (17) "Trailer" means any vehicle designed to be drawn by a motor truck or truck-tractor,
4 but supported wholly upon its own wheels, intended for the carriage of freight or
5 merchandise and having a load capacity of over one thousand (1,000) pounds;

6 (18) "Unobstructed highway" means a straight, level, first-class road upon which no
7 other vehicle is passing or attempting to pass and upon which no other vehicle or
8 pedestrian is approaching in the opposite direction, closer than three hundred (300)
9 yards;

10 (19) (a) "Vehicle" includes:

11 1. All agencies for the transportation of persons or property over or upon
12 the public highways of the Commonwealth; and

13 2. All vehicles passing over or upon the highways.

14 (b) "Motor vehicle" includes all vehicles, as defined in paragraph (a) of this
15 subsection, except:

16 1. Road rollers;

17 2. Road graders;

18 3. Farm tractors;

19 4. Vehicles on which power shovels are mounted;

20 5. Construction equipment customarily used only on the site of
21 construction and which is not practical for the transportation of persons
22 or property upon the highways;

23 6. Vehicles that travel exclusively upon rails;

24 7. Vehicles propelled by electric power obtained from overhead wires
25 while being operated within any municipality or where the vehicles do
26 not travel more than five (5) miles beyond the city limits of any
27 municipality;

1 8. Vehicles propelled by muscular power; and

2 9. Electric low-speed scooters;

3 (20) "Reflectance" means the ratio of the amount of total light, expressed in a
4 percentage, which is reflected outward by the product or material to the amount of
5 total light falling on the product or material;

6 (21) "Sunscreening material" means a product or material, including film, glazing, and
7 perforated sunscreening, which, when applied to the windshield or windows of a
8 motor vehicle, reduces the effects of the sun with respect to light reflectance or
9 transmittance;

10 (22) "Transmittance" means the ratio of the amount of total light, expressed in a
11 percentage, which is allowed to pass through the product or material, including
12 glazing, to the amount of total light falling on the product or material and the
13 glazing;

14 (23) "Window" means any device designed for exterior viewing from a motor vehicle,
15 except the windshield, any roof-mounted viewing device, and any viewing device
16 having less than one hundred fifty (150) square inches in area;

17 (24) "All-terrain vehicle" means any motor vehicle used for recreational off-road use;

18 (25) "Nondivisible load," as pertains to:

19 (a) State highways that are not part of the national truck network established
20 pursuant to 23 C.F.R. pt. 658, means a load or vehicle, that if separated into
21 smaller loads or vehicles:

22 ~~1. (a)~~ Compromises the intended use of the vehicle, making it unable to
23 perform the function for which it was intended;

24 ~~2. (b)~~ Destroys the value of the load or vehicle, making it unusable for
25 its intended purpose; or

26 ~~3. (c)~~ Requires more than four (4) work hours to dismantle and
27 reassemble using appropriate equipment; or

1 **(b) Any highway that is part of the national truck network established pursuant**
2 **to 23 C.F.R. pt. 658, includes fluid milk products in accordance with 23**
3 **U.S.C. sec. 127(a)(13);**

4 (26) "Electric low-speed scooter" means a device that:

- 5 (a) Weighs less than one hundred (100) pounds;
- 6 (b) Is equipped with wheels;
- 7 (c) Is equipped with handlebars;
- 8 (d) Is equipped with a brake adequate enough to stop and park the device;
- 9 (e) Is designed to be stood or sat upon;
- 10 (f) Is propelled by an electric motor, human power, or both; and
- 11 (g) Is designed to operate at a maximum speed of twenty (20) miles per hour, on a
- 12 paved level surface, with or without human propulsion; and

13 (27) "Highway work zone" means that portion of a highway and the affected area
14 adjacent to a lane, berm, or shoulder, including a sidewalk, upon which
15 construction, reconstruction, resurfacing, maintenance, inspection, or other work of
16 that nature is being conducted by a government agency, private contractor, or utility
17 company.

18 ➔Section 4. KRS 189.270 is amended to read as follows:

19 (1) (a) The department may issue permits for the operation of motor vehicles,
20 manufactured homes, recreational vehicles, boats, or any other vehicle
21 transporting a nondivisible load, whose gross weight including load, height,
22 width, or length exceeds the limits prescribed by this chapter or which in other
23 respects fail to comply with the requirements of this chapter. Permits may be
24 issued by the department for stated periods, special purposes, and unusual
25 conditions, and upon terms in the interest of public safety and the preservation
26 of the highways as the department may require.

27 (b) Subject to the limitations in subsection (4) of this section, the department shall

1 promulgate administrative regulations in accordance with KRS Chapter 13A
2 to set fees for permits established under this section.

3 (2) Except as provided in subsection (8) of this section, the department may, at the
4 request of an applicant, issue a single-trip permit regardless of the type of vehicle or
5 equipment being transported that exceeds the weight or dimension limits
6 established by this chapter if the load being transported is a nondivisible load.

7 (3) (a) Except as provided in subsection (8) of this section, the department may, at
8 the request of an applicant, issue an annual permit regardless of the type of
9 vehicle or equipment being transported that exceeds the weight or dimension
10 limits established by this chapter if the load being transported is a nondivisible
11 load.

12 (b) Except as provided in paragraph (c) of this subsection, a~~The~~ vehicle
13 operating under a permit issued under this subsection shall not exceed sixteen
14 (16) feet in width exclusive of usual and ordinary overhang, one hundred
15 twenty (120) feet in length including a towing vehicle and trailer combination,
16 thirteen (13) feet six (6) inches in height, or one hundred sixty thousand
17 (160,000) pounds.

18 (c) Notwithstanding KRS 189.269, a vehicle transporting fluid milk products
19 under a permit issued under this subsection shall not exceed one hundred
20 thousand (100,000) pounds.

21 (4) The department shall establish the following annual permits to transport farm
22 equipment, with the listed fee limits:

23 (a) For equipment less than or equal to fourteen (14) feet in width, eighty dollars
24 (\$80); and

25 (b) For equipment that exceeds fourteen (14) feet in width, when transported from
26 a dealership to a farm, from a farm to a dealership, or from a dealership to a
27 dealership, one hundred fifty dollars (\$150).

- 1 (5) Permits issued under this section shall be for nondivisible loads and shall be valid
2 statewide; however, the department may, as a condition of issuing an annual or
3 single-trip permit, limit the overweight or overdimensional vehicle to specified
4 routes, exclude certain highways, or even cancel an applicant's permit if an
5 unreasonable risk of accident or an unreasonable impedance of the flow of traffic
6 would result from the presence of the overweight or overdimensional vehicle. A
7 person who applies for, and accepts, a permit issued under this section is
8 acknowledging that the Kentucky Transportation Cabinet is not guaranteeing safe
9 passage of vehicles by issuing the permit. A person who applies for, and accepts, a
10 permit issued under this section agrees to measure all clearances of highway
11 structures, both laterally and vertically, prior to passage of the person's vehicles
12 along the routes specified in the permit. A person who applies for, and accepts, a
13 permit issued under this section is classified as a bare licensee whose duty is to
14 assume sole risk involved in using Kentucky's highways without warranty of
15 accuracy.
- 16 (6) Subject to the limitations of subsection (12) of this section, the department shall
17 promulgate administrative regulations under KRS Chapter 13A to establish
18 requirements for escort vehicles, safety markings, and other safety restrictions
19 governing the operation of an overweight or overdimensional vehicle. The
20 department shall provide each applicant for an annual or single-trip permit issued
21 under this section a copy of all restrictions associated with the overweight or
22 overdimensional permit at no charge to the applicant. The department shall be
23 prohibited from raising the permit fee established in subsections (2) and (3) of this
24 section by levying additional fees for an overweight or overdimensional permit
25 through the administrative regulation process.
- 26 (7) (a) Notwithstanding KRS 189.269, the department may, at the request of an
27 applicant who is a transporter of manufactured housing, issue an annual

- 1 permit that exceeds the weight or dimension limits established by this chapter
2 if the load being transported is a nondivisible load.
- 3 (b) The vehicle operated shall not exceed sixteen (16) feet in width exclusive of
4 usual and ordinary overhang, one hundred twenty (120) feet in length
5 including a towing vehicle and trailer combination, fifteen (15) feet in height,
6 or one hundred sixty thousand (160,000) pounds.
- 7 (c) The holder of a permit issued under this subsection shall, when transporting a
8 manufactured home:
- 9 1. Abide by all escort requirements, safety markings, and other safety
10 restrictions governing overweight and overdimensional vehicles; and
11 2. Equip each truck operating under a permit with global positioning
12 system technology that keeps a record of locations traveled. The travel
13 records of trucks operating under a permit shall be open to inspection by
14 the Transportation Cabinet.
- 15 (d) Any person with a permit under this subsection who operates a vehicle greater
16 than thirteen (13) feet six (6) inches in height while operating in a restricted
17 area designated by the Transportation Cabinet shall be fined one thousand
18 dollars (\$1,000).
- 19 (8) The cabinet shall not issue an annual permit under this section if the person
20 applying for the permit is eligible for an annual permit issued under KRS 189.2716
21 or 189.2717.
- 22 (9) The department may require the applicant to give bond, with approved surety, to
23 indemnify the state or counties against damage to highways or bridges resulting
24 from use by the applicant. The operation of vehicles in accordance with the terms of
25 the permit issued under this section shall not constitute a violation of this chapter if
26 the operator has the permit, or an authenticated copy of it, in his or her possession.
- 27 (10) Any person transporting a parade float which exceeds the dimensional limits on a

1 highway over which it is transported shall be required to obtain a permit as required
2 in subsection (2) of this section. If the float is being used in conjunction with a
3 parade to be held within the boundaries of the Commonwealth, a fee shall not be
4 assessed by the department to issue the permit.

5 (11) A person shall not operate any vehicle in violation of the terms of the permit issued
6 under this section.

7 (12) (a) The cabinet shall not promulgate administrative regulations pursuant to this
8 section that restrict the time or days of the week when a permit holder may
9 operate on the highway, except that travel may be limited from 6 a.m. to 9
10 a.m. and 3 p.m. to 6 p.m. Monday through Friday. In addition to the
11 restrictions established in this paragraph, any manufactured home being
12 transported by permit issued under this section shall not travel on any
13 highway after daylight hours Monday through Saturday, or at any time on
14 Sunday.

15 (b) The cabinet shall allow a permit holder who has obtained a permit to transport
16 equipment to a work site to return to the permit holder's place of business
17 immediately after work is completed at the job site, subject to the limitations
18 of paragraph (a) of this subsection.

19 (c) The cabinet shall not promulgate administrative regulations pursuant to this
20 section setting forth escort vehicle requirements for overdimensional farm
21 implements or vehicles towing overdimensional farm implements that are
22 more stringent than the following:

- 23 1. For a single vehicle and load in excess of twelve (12) feet in width being
24 operated on a two (2) lane highway, no more than one (1) lead vehicle
25 shall be required;
- 26 2. For a single vehicle and load in excess of twelve (12) feet in width being
27 operated on a four (4) lane highway, no more than one (1) trail vehicle

1 shall be required;

2 3. For a single vehicle and load in excess of eighty-five (85) feet in length
3 being operated on a two (2) lane highway, no more than one (1) lead
4 vehicle shall be required;

5 4. For more than one (1) vehicle and load in excess of twelve (12) feet in
6 width or eighty-five (85) feet in length being operated as a convoy on a
7 two (2) lane highway, no more than one (1) lead vehicle shall be
8 required;

9 5. A lead escort vehicle on a two (2) lane highway under this paragraph
10 may also serve as a tow vehicle;

11 6. Any distance for lead or trail escort vehicles shall contain provisions
12 allowing for a variance from that distance due to safety or road
13 conditions; and

14 7. A vehicle or its escort shall be required to bear a sign declaring that the
15 vehicle is oversized or be required to use lights, flashers, or flags, but a
16 vehicle or its escort shall not be required to do both.

17 ➔Section 5. KRS 189.2717 is amended to read as follows:

18 (1) (a) Subject to the provisions of KRS 189.222, the department may promulgate
19 administrative regulations pursuant to KRS Chapter 13A governing the
20 issuance of annual permits for the operation of motor vehicles transporting
21 nondivisible loads in this Commonwealth whose gross weight exceeds the
22 limits prescribed by this chapter.

23 (b) Except as provided in paragraph (c) of this subsection, the gross weight of a
24 motor vehicle operating pursuant to this section shall not exceed one hundred
25 twenty thousand (120,000) pounds.

26 (c) Notwithstanding KRS 189.269, the gross weight of a motor vehicle
27 transporting fluid milk products under a permit issued under this section

1 **shall not exceed one hundred thousand (100,000) pounds.**

2 **(d)** The movement of the overweight motor vehicle shall be limited to a specific
3 route set forth on the annual permit.

4 (2) **Except as provided is subsection (3) of this section,** the following axle weights
5 shall not be exceeded in the loading of a nondivisible load:

6 (a) Single axle with axles less than forty-two (42) inches apart and being the
7 steering axle with one (1) wheel on each side of the axle to be considered a
8 single axle shall not be more than fifteen thousand (15,000) pounds;

9 (b) Two (2) axles in tandem arrangement which are spaced forty-two (42) inches
10 or more apart and less than ninety-six (96) inches apart shall not be more than
11 forty thousand (40,000) pounds;

12 (c) Three (3) axles in tridem arrangement which are spaced forty-two (42) or
13 more inches apart and less than one hundred twenty (120) inches apart shall
14 not be more than sixty-five thousand (65,000) pounds; and

15 (d) Dual wheel axle with one (1) axle with two (2) wheels on each side of the axle
16 to be considered a dual wheel axle shall not be more than twenty thousand
17 (20,000) pounds each.

18 (3) **Notwithstanding KRS 189.269, the axle weight limits in subsection (2) of this**
19 **section shall not apply to a vehicle transporting fluid milk products under a**
20 **permit issued under this section.**

21 **(4)** Each motor vehicle operating pursuant to this section shall comply with the safety
22 provisions set forth in the administrative regulations promulgated by the department
23 pursuant to this section.

24 ~~**(5)**~~~~**(4)**~~ The department shall promulgate administrative regulations in accordance
25 with KRS Chapter 13A to set fees for permits established under this section.

26 ~~**(6)**~~~~**(5)**~~ The department may refuse to issue a permit for a requested route because of
27 the inadequacies of the roadway or a structure on that route.

1 ➔Section 6. KRS 189.221 is amended to read as follows:

2 A person shall not operate on any highway, except those highways designated by the
3 secretary of transportation under the provisions of KRS 189.222, or those locally
4 maintained highways under the provisions of KRS 189.222~~(13)~~~~(12)~~ or 189.230(4), any
5 of the following trucks, trailers, manufactured homes, or vehicles:

6 (1) Any motor truck, semitrailer, trailer, manufactured home, or vehicle which exceeds
7 eleven and one-half (11-1/2) feet in height or ninety-six (96) inches in width,
8 including any part of the body or load;

9 (2) Any motor truck, except a semitrailer truck, which exceeds twenty-six and one half
10 (26-1/2) feet in length, including any part of the body or load;

11 (3) Any semitrailer truck which exceeds thirty (30) feet in length, including any part of
12 the body or load;

13 (4) Any truck, semitrailer truck, or truck and trailer unit which exceeds 36,000 pounds
14 gross weight, including the load;

15 (5) Any truck, semitrailer truck, or tractor-trailer unit which exceeds a gross weight
16 equal to the sum of six hundred (600) pounds per inch of the combined width of the
17 tires upon which the vehicle may be propelled, but no more than thirty-six thousand
18 (36,000) pounds; and

19 (6) Notwithstanding the provisions of this section, any truck hauling building materials
20 under KRS 189.2226, or to a road construction project on a highway rated less than
21 the maximum weight provided above, may haul up to eighty thousand (80,000)
22 pounds gross weight, including the load, without a permit.